



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

November 05, 2021

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 9856
(TWELFTH REVISION)

EXPIRATION DATE: 2025-10-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: UPMC Shadyside Hospital
Pittsburgh, Pennsylvania
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the use of either DOT specification or non-DOT specification packaging and authorizes patient use of oxygen systems (Division 2.2) on board a passenger ship or cargo ship. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. This special permit is extended to other users as specified in paragraph 8.c. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.316, 173.320, 176.63(b), and 176.200 through 176.210, except as specified herein.
5. BASIS: This special permit is based on the application of UPMC Shadyside Hospital dated September 21, 2021 and submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Oxygen, refrigerated liquid (cryogenic liquid)	2.2	UN1073	N/A
Oxygen, compressed	2.2	UN1072	N/A

7. SAFETY CONTROL MEASURES:a. Packaging for liquid oxygen:

- (1) CRYO/2 Corporation's models GRANDEAIR (stationary model), or equivalent (maximum 100 lbs capacity), and TRAVELAIR (portable model), or equivalent (maximum 3.78 lbs capacity),
- (2) PURITAN-BENNETT Corporation's Companion (stationary) models 21, 31 and 41 and Mark IV (stationary) models F50/40, R50/70, R50/90, R20/41, R20/72 and R20/93 or equivalent (maximum 100 lbs capacity), and Companion (portable) models T and 1000 and Mark IV Walker (portable) models W50/2.8 and W20/2.9 or equivalent (maximum 3.00 lbs capacity),
- (3) Union Carbide Corporation's Mark III (stationary) models OR-302, OR-303 and OR-304 or equivalent (maximum 90 lbs capacity) and Mark III (portable) models OW-302 and OW-303 or equivalent (maximum 3.0 lbs capacity),
- (4) Minnesota Valley Engineering, Incorporated's models identified as the Liberator 30 (stationary unit) with a capacity of 72 pounds and Stroller 10 (portable unit) with a capacity of 3.0 pounds, or
- (5) Lifecare International's Freedom 02 (portable oxygen concentrator) Model AC-300.

b. Packagings for compressed oxygen: DOT 3AL specification cylinders.

c. Other stationary and portable models specifically identified to and acknowledged in writing by the Office of Hazardous Materials Safety (OHMS) prior to first shipment.

All models must be approved by the U.S. Food and Drug Administration (FDA), Bureau of Medical Devices.

8. SPECIAL PROVISIONS.

- a. A current copy of this special permit must be provided to the vessel's Master, Chief Mate or Chief Engineer prior to loading any units onto the vessel.
- b. Ships' crews must be instructed as to the necessary safeguards and proper procedures in the event of fire or accident involving liquified oxygen or compressed gas.
- c. Passengers, including those not represented by the specified special permit holder, may carry the units described in paragraph 7. of this special permit aboard passenger and cargo vessels. These units can be used by passengers in need of oxygen, provided each passenger using the equipment has a copy of DOT-SP 9856, on board the vessel, and is familiar with its conditions. For passengers utilizing liquefied oxygen, see paragraphs 8.h.(5) and 8.h.(6) below for access to stationary units and filling requirements.
- d. The stationary units may not exceed a total capacity of 1000 lbs when placed on board a vessel under this special permit.
- e. All units used under this special permit must have no outstanding recall notices.
- f. All units used under this special permit with electrical components must be Underwriters Laboratories (UL) or Factory Mutual (FM) listed.
- g. All units used under this special permit must be used in accordance with the manufacturer's instructions. As a minimum the following conditions will apply:
 - (1) Prevent the accumulation of oxygen in cabins by turning off the oxygen supply valve when the equipment is not being used.
 - (2) Keep units in well ventilated areas.
 - (3) Do not carry the units under a coat or any form of clothing.
 - (4) Matches, cigarette lighters, burning tobacco and candles must be eliminated from the cabin where the oxygen unit is being used and stored.
 - (5) Radios, televisions sets, fans, electrical razors and all other electrical appliances must be kept at least six feet from the oxygen units.
 - (6) All electrical equipment must be properly grounded.
 - (7) Do not place units near heat sources.
 - (8) Keep all flammable materials away from the oxygen units.
 - (9) Keep all units out of the reach of children.

(10) No unauthorized individuals should be allowed to tamper with the units.

(11) Keep oils, greases, vaseline, lotions, facial creams and hair dressings away from the units. Aerosol sprays are also prohibited from use in the vicinity of the units.

h. For the stationary units:

(1) Stowage must be in accordance with § 176.63(b) and § 176.83(b).

(2) If the stowage area is not on weather decks, the space must have an intrinsically safe or explosion proof electrical installation.

(3) If the stowage area is not on the weather decks, the space must be ventilated to prevent oxygen enrichment of the space.

(4) Stowage locations must be approved by the vessel's Master, Chief Mate or Chief Engineer.

(5) Access to the units must be approved by the vessel's Master, Chief Mate or Chief Engineer.

(6) Only trained attending medical staff must fill the portable units.

(7) Units must be configured and stowed to withstand the conditions of transportation by sea.

(8) All locations where units are stored must be designated as no smoking areas and suitably posted as such.

i. For the portable units:

(1) Portable units may be used in any public area, and used or stored in any cabin in accordance with the conditions of this special permit.

(2) Cabins where units are used must be designated as no smoking areas and suitably posted as such.

(3) Users of the units must be trained in its proper use.

(4) Units must be stowed and handled to withstand the conditions of transportation by sea.

- j. Any unit that is damaged or develops a leak must be immediately placed "on-deck" and the Master notified. The unit must remain "on-deck" until repaired or is emptied of all oxygen.
- k. The conditions of this special permit do not relieve the users from any requirements issued by:
 - (1) The master of the vessel.
 - (2) The Competent Authority of the Government having registered the vessel.
 - (3) Any Nation whose waters or ports the vessel sails into or calls upon.
- l. The local Coast Guard Captain of the Port must be notified and provided a copy of this special permit by the users at least 72 hours prior to the vessel's departure from the port where the units are first loaded.
- m. Shippers using the packaging covered by this special permit must comply with all provisions of this special permit, and all other applicable requirements contained in 49 CFR Parts 171-180.
- 9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, passenger vessel, and cargo vessel.
- 10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle, passenger vessel, and cargo vessel used to transport packages covered by this special permit.
- 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

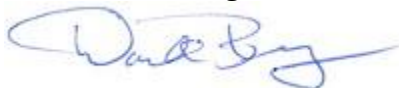
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by § 172.700 through § 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this exemption are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this exemption must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this exemption.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Andrew Eckenrode